

25VECP00639 25VECP00639

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-02

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Case Number: 25VECP00639 Hearing Date: September 2, 2026 Dept: B

Tentative Ruling

Choi v. Allstate Northbrook

Indemnity Company, Case no. 25VECP00639

Hearing date September 2, 2026

Petitioner

Choi's Petition to Compel Arbitration

Petitioner

Choi filed a petition to compel arbitration against respondent Allstate Northbrook Indemnity Company in this UM/UIM matter. Petitioner alleges he was injured in an automobile accident and demanded arbitration with respondent regarding the extent and terms of petitioner's UM/UIM coverage. Respondent opposes, arguing threshold issues of policy limits must be judicially determined before arbitration occurs.

A

petition to compel arbitration is governed by Code Civ. Proc. §1281.2. Per section 1281, a written agreement to submit to arbitration any controversy arising between the parties is valid, enforceable and irrevocable, except upon grounds that exist for the revocation of any contract. Per Ins. Code §11580.2(f), disputes regarding UM/UIM claims are subject to mandatory arbitration. However, section 11580.2(f) limits mandatory arbitration to determination of whether the insured is legally entitled to recover damages from the uninsured/underinsured motorist and, if so, the amount of damages. Section 11580.2(f) does not require arbitration of disputes regarding coverage, policy interpretation, policy

limits or existence of coverage.

Petitioner

had a policy with respondent; at issue is the extent of UM/UIM coverage under that policy. Petitioner alleges policy limits of \$50,000/\$100,000. See Pet., para. 8. Respondent produced documentation in response to petitioner's demand, indicating petitioner's coverage limits were \$15,000/\$30,000. Id. at para. 8, exhs. B-F.

The

California Supreme Court held Ins. Code §11580.2 requires arbitration of only two issues: "(1) whether the insured is entitled to recover against the uninsured motorist and (2) if so, the amount of damages." *Freeman v. State Farm Mut. Auto. Ins. Co.* (1975) 14 Cal.3d 473, 480-481. Questions concerning coverage remain matters for judicial determination. Id. The petition states the issue is not existence of coverage nor the amount of damages, but the terms of petitioner's policy and the limits of coverage. This is an issue for judicial determination, not subject to arbitration. See *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190. DENIED.